

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MOBILE MANOR, LIMITED,
LLLP d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

v.

CASE NO.: 2015 CC 1274

MARLIN YODER and
ANY UNKNOWN TENANT(s)

Defendant(s).

**DEFENDANT'S MOTION TO COMPEL DISCOVERY PURSUANT TO THE
DECEMBER 1, 2015 COURT ORDER**

The Defendant, MARLIN YODER, by and through undersigned counsel, respectfully moves this Court for an order compelling Plaintiff to answer the Request for Production propounded upon same, pursuant to Fla. R. Civ. P. 1.350(b), 1.380(a), and the Court Order entered December 1, 2015. In support of this Motion, Defendant, MARLIN YODER, would show this court as follows:

1. On November 17, 2015 a hearing was held on Defendant's Motion to Compel discovery regarding the below stated request and Plaintiff's objection:

Any and all violation notices or written warnings including, but not limited to, all notice of violations issued pursuant to Fla. Stat. § 723, all 3 or 5 day notices for failure to pay rent, all 1st notices of violation(s) with or without the right to cure, and all 2nd notices of violation(s) requiring the tenant to vacate, which the Plaintiff issued, posted, or delivered to any resident, individual, or unit in Plaintiff's mobile home park, Colonial Mobile Manor, at any time from January 2014 to the present.

Plaintiff objected as follows:

“OBJECTION to Request to Produce Item #1. This request is objected to as being unduly burdensome and prejudicial to the rights of mobile home residents of the Park. The park has 230 units; conservatively, over 20% of the residents have been sent written or been delivered oral and/or written notices of violations of Park Rules in the last two (2) years. Whether a tenant has been sent a letter for violation of failure to pay rent is completely irrelevant to this cause of action. Notwithstanding same, Plaintiff is capable of production all resident files of Colonial Mobile Manor who have been delivered Notices of Violation of Park Rules from January 2014 to the present, including rent violations, and a list of residents who have been notified orally of violations of Park Rules for which rights to cure are applicable or not. The Plaintiff objects to the place and time of production, that is, at Defendant’s attorney’s office or at the office of Vincent M. Lucente & Associates, Inc., unless same is pursuant to a deposition of Plaintiff’s records custodian. See Pierce v. Doral Mobile Home Villas, Inc., 521 So.2d 282 (Fla. 2d DCA 1988).”

2. On December 1, 2015, the Court Ordered that the above referenced discovery request be produced and provided to Defendant.

3. Defendant has attempted on multiple occasions, via email, to correspond with Plaintiff in an attempt to obtain the Ordered discover, including December 17, 28, 29, and January 12, 21, 22. On January 12, 2016, Plaintiff informed Defendant that the discovery would be provided the following week, yet no documents were provided. Defendant has yet to receive a response from Plaintiff regarding the Defendant’s follow-up correspondence sent on January 21/22, which has necessitated the need for the Motion and subsequent hearing.

4. The Plaintiff has now had nearly two (2) months to comply with the Court Order, yet continues to not produce the documents.

5. Defendant requests this Court to require the Plaintiff to produce the documents pursuant to the Court Order within five (5) days, of the hearing.

CERTIFICATE OF GOOD FAITH

The undersigned does hereby certify that he has made a good faith attempt to confer with the party failing to make discovery in an attempt to avoid this Motion to Compel.

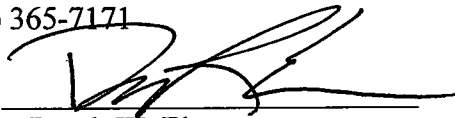
WHEREFORE, Defendant respectfully requests that this Court enter an Order compelling Defendant to properly and fully respond to the Request for Production by Defendant, pursuant to the December 1, 2015, Court Order.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished via email to William C. Price III, Esq., 522 12th Street West, Bradenton, FL 34205, wcprice@wcpriceiiiipa.com, this 26 of January, 2016.

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